

2. 9:00 AM CASE NUMBER: C22-00897

CASE NAME: TIMOTHY ALVEY VS. JAMES WELDON

***HEARING ON MOTION IN RE: ORDER SUBSTITUTING PERSONAL REPRESENTATIVE AND LEAVE TO FILE FOURTH AMENDED COMPLAINT**

FILED BY: ALVEY, TIMOTHY L

TENTATIVE RULING:

The motion is **granted**. The moving papers establish sufficient grounds and there is no opposition. The **proposed Fourth Amended Complaint attached as Exhibit B to the Martinez declaration shall be filed within ten days after notice of entry of the order granting the motion.**

3. 9:00 AM CASE NUMBER: C22-01725

CASE NAME: LONELL SWEARINGTON VS. DONOR NETWORK WEST

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF DOCS, SET 2**

FILED BY: SWEARINGTON, LONELL R

TENTATIVE RULING:

Plaintiff moves to compel further responses to requests for production of documents, set two, specifically request Numbers 10 and 12. Request 10 seeks documents that constitute time records for non-exempt employees during the relevant time period. Request 12 is similar. This follows his motion to compel further responses to special interrogatories, set one. The three special interrogatories in question request (1) contact information for all employees during the relevant time period; (2) the number of employees during the period; and (3) the job titles or positions of employees in the same period. The issues are similar in each of the two motions.

The dispute was the subject of an Informal Discovery Conference with the Court on July 10, 2025. The underlying case is a wage and hour putative class action. A prior case, however, *Shweiki v. Donor Network West*, No. MSC20-00073 settled wage and hour claims from January 10, 2016 through August 22, 2022. Mr. Swearington opted out of that settlement, thus his individual claim may proceed. He brings this putative action to address claims accruing after August 22, 2022. Initially, the claims included prior time periods, but counsel ultimately agreed that it covered only post-August 2022 claims. (Regardless of whether counsel is bound by the statement, it is a necessary concession in this case.) The glitch in this effort is that he stopped working for defendant on July 23, 2021, and therefore is not and has never been a member of the class he seeks to represent. Accordingly, he seeks classwide discovery in order to find another class representative.

Plaintiff is entitled to make an effort to find a new class representative. Plaintiff points to cases that have allowed such discovery, including *Best Buy Stores, L.P. v. Superior Court* (2006) 137 Cal.App.4th 772, 774. and *Cash Call v. Superior Court* (2008) 159 Cal.App.4th 273, 284.) In these cases, however, the named plaintiff at one time was a class member, but ceased to be one. Where the plaintiff never was a class member, it has been held that no precertification discovery is permitted. (*First American Title Ins. Co.*, (2007) 146 Cal.App.4th 1564, 1577. (Trial court opinions do not set precedent and will not be considered.) (*Bolanos v. Superior Court* (2008) 169 Cal.App.4th 744; *In re Molz* (2005) 127 Cal.App.4th 836, 845.) Plaintiff points out in reply, however, that the *Shweiki* settlement was not

approved under August 27, 2024, over two years after the complaint in this action was filed. Thus, the pre- post-August 22 distinction did not become critical under August of 2024, rendering this case more like *Best Buy* and *Cash Call* than it is like *First American Title*.

The document requests, however, are much broader than the special interrogatories. While understandably relevant to the merits of the case, they are far too broad to be justified by the search for a new plaintiff. If a new plaintiff is found, the matter will then be different. This motion is **denied**.

Because plaintiff did not prevail on this motion, **sanctions will not be awarded**. Defendant did not seek sanctions, and in any event, each side's position was substantially justified.

4. 9:00 AM CASE NUMBER: C23-02194
CASE NAME: STEPHANIE SENNA VS. DOES 1 THROUGH 10, INCLUSIVE
***HEARING ON MOTION IN RE: FOR PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT (CONTINUED FROM 09.25.25, 10.30.25, 12.04.25 & 12.11.25)**
FILED BY:

TENTATIVE RULING:

Appearances required (by zoom is sufficient), pending submission of signed agreement.

5. 9:00 AM CASE NUMBER: C23-02821
CASE NAME: LESLEY HOWARD VS. LIBERTY ASSOCIATES GROUP, LLC
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT**
FILED BY: HOWARD, LESLEY

TENTATIVE RULING:

Plaintiff Lesley Howard moves for preliminary approval of her class action and PAGA settlement with defendant Liberty Associates Group, LLC.

A. Background and Settlement Terms

The original complaint was filed by Plaintiff on November 6, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. A First Amended Complaint adding PAGA claims was filed on February 5, 2024. A Second amended Complaint was filed on August 21, 2025 (pursuant to agreement of the parties) expanding the claims somewhat. It is the operative complaint.

The settlement would create a gross settlement fund of \$1 million. The class representative payment to plaintiff would be \$10,000. Attorney's fees would be \$333,333.33 (one-third of the settlement). Litigation costs would not exceed \$27,500. The settlement administrator's costs would be up to \$24,000. PAGA penalties would be \$100,000, resulting in a payment of \$75,000 to the LWDA and \$25,000 to the aggrieved employees. The net amount paid directly to the class members would be about \$505,166.67. The fund is non-reversionary. Based on the estimated class size of 2,174, the average net payment for each class member is approximately \$232.

The proposed settlement would certify a class of all current and former non-exempt employees